

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
DAVID SAFFORD,

Plaintiff,

-against-

THE CITY OF NEW YORK, NORMAN ORTEGA,
KENO CHAMBERS, SGT. JOHN DOE #1,
NYPD OFFICER JOHN DOE #2 and
NYPD OFFICER JOHN DOE #3,

Defendants.

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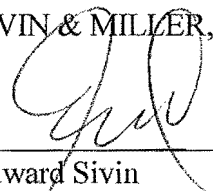
To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
March 4, 2014

SIVIN & MILLER, LLP

By


Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

The City of New York: 100 Church Street, New York, NY 10007

Norman Ortega: c/o NYPD 23rd Precinct, 162 East 102 Street, New York, NY 10029

Keno Chambers: c/o NYPD 23rd Precinct, 162 East 102 Street, New York, NY 10029

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
DAVID SAFFORD,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NORMAN ORTEGA,
KENO CHAMBERS, SGT. JOHN DOE,
NYPD OFFICER JOHN DOE #2 and
NYPD OFFICER JOHN DOE #3,

Defendants.

----- X

Plaintiff, by his attorneys SIVIN & MILLER, LLP, as and for his complaint herein,
alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

2. That prior to the institution of this action, and within ninety days of the accrual of the causes of action herein, a Notice of Claim and Intention to Sue on behalf of plaintiff was duly served on defendants; that this action was not commenced until the expiration of thirty (30) days after such Notice of Claim and Intention to Sue was served, and defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.

3. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the “NYPD”).

4. That at all times herein mentioned, defendant Norman Ortega (hereinafter “Ortega”) was and is an officer employed by the NYPD.

5. That at all times herein mentioned, Ortega was acting within the course and scope of his employment with the NYPD.

6. That at all times herein mentioned, Ortega was acting under color of state law.

7. That at all times herein mentioned, defendant Keno Chambers (hereinafter “Chambers”) was and is an officer employed by the NYPD.

8. That at all times herein mentioned, Chambers was acting within the course and scope of his employment with the NYPD.

9. That at all times herein mentioned, Chambers was acting under color of state law.

10. That at all times herein mentioned, defendant Sgt. John Doe #1, whose name herein is fictitious and is intended to represent an NYPD sergeant who participated in the March 27 to March 28, 2013 use of force, arrest, detention, and prosecution of plaintiff, was and is a sergeant employed by the NYPD.

11. That at all times herein mentioned, Sergeant John Doe #1 was acting within the course and scope of his employment with the NYPD.

12. That at all times herein mentioned, Sergeant John Doe #1 was acting under color of state law.

13. That at all times herein mentioned, defendants John Doe #2 and John Doe #3, whose names herein are fictitious and are intended to represent NYPD officers who participated in the March 27 to March 28, 2013 use of force, arrest, detention, and prosecution of plaintiff, were and are officers employed by the NYPD.

14. That at all times herein mentioned, John Doe #2 and John Doe #3 were acting within the course and scope of their employment with the NYPD.

15. That at all times herein mentioned, John Doe #2 and John Doe #3 were acting under color of state law.

THE FACTS

16. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

17. That on or about March 27 and March 28, 2013, in the County of New York, City and State of New York, the City of New York, by and through its agents, servants and/or employees, including officers with the NYPD, including Ortega, Chambers, Sgt. John Doe #1, John Doe #2, and John Doe #3, without a warrant and without probable cause or reasonable suspicion to believe that plaintiff had committed a crime, criminal offense or violation, and without otherwise being justified, forcibly seized and searched plaintiff, slammed plaintiff against the wall, slapped plaintiff in the head, forcibly handcuffed plaintiff, and otherwise used force against plaintiff that was neither reasonable nor justified.

18. That Ortega, Chambers, Sgt. John Doe #1, John Doe #2, and John Doe #3 also arrested and imprisoned plaintiff, again without a warrant and without probable cause, reasonable suspicion, or justification, and without permission or consent.

19. That defendants continued forcibly to detain plaintiff against his will at various locations, including a police precinct and Central Booking.

20. That while plaintiff was in police custody he was strip-searched against his will by defendants herein.

21. That on or about March 28, 2013, defendants Ortega, Chambers, and Sgt. John

Doe #1 also maliciously initiated and/or caused to be initiated against plaintiff a criminal prosecution, charging plaintiff with various crimes and/or criminal violations and requiring plaintiff to appear in Criminal Court to defend against the various criminal charges.

22. That plaintiff had not committed the aforesaid crimes or violations, and defendants knew that they did not have probable cause or reasonable suspicion to believe that plaintiff had committed any of the aforesaid crimes or violations.

23. That on or about July 23, 2013, the criminal charges against plaintiff were dismissed and the criminal proceedings resulted in terminations favorable to plaintiff.

24. That each of the individually named police officers observed the aforementioned conduct by his fellow officers, and each officer had the ability and opportunity to intervene to prevent or stop the aforementioned conduct.

25. That despite having observed the aforementioned conduct by his fellow officers, and having had the ability and opportunity to intervene to prevent or stop the aforementioned conduct, each of the individually named police officers failed and refused to intervene in any manner, thereby permitting the aforementioned conduct to take place or continue.

26. That the aforesaid actions by Ortega, Chambers, Sgt. John Doe #1, John Doe #2, and John Doe #3 were intentional and malicious in nature.

27. That as a result of the foregoing, plaintiff suffered and continues to suffer physical, emotional, and psychological injuries, loss of liberty, embarrassment, humiliation, and economic loss.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Assault and Battery)

28. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

29. That the aforementioned actions of defendants constitute an assault and battery against plaintiff.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Arrest/Imprisonment)

30. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

31. That the aforementioned actions of defendants constitute a false arrest and false imprisonment of plaintiff.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution)

32. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

33. That the aforementioned actions of defendants constitute a malicious prosecution of plaintiff.

FOURTH CAUSE OF ACTION AGAINST DEFENDANTS
ORTEGA, CHAMBERS, SGT. JOHN DOE #1, JOHN DOE #2 AND JOHN DOE #3
(42 USC § 1983 Claim Arising From Fourth Amendment Violations)

34. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

35. That the aforementioned actions of defendants Ortega, Chambers, Sgt. John Doe #1, John Doe #2, and John Doe #3, constitute illegal searches and seizures and deprivation of liberty of plaintiff in violation of rights guaranteed to plaintiff under the Fourth Amendment and Fourteenth Amendment to the US Constitution, and entitle plaintiff to recover damages pursuant to 42 USC § 1983.

FIFTH CAUSE OF ACTION AGAINST DEFENDANTS
ORTEGA, CHAMBERS, SGT. JOHN DOE #1, JOHN DOE #2 AND JOHN DOE #3
(Violation of Article I, § 12 of the New York State Constitution)

36. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

37. That the aforementioned actions of defendants Ortega, Chambers, Sgt. John Doe #1, John Doe #2, and John Doe #3 constitute illegal searches and seizures of plaintiff in violation of rights guaranteed to plaintiff under the Article I, § 12 of the New York State Constitution.

SIXTH CAUSE OF ACTION AGAINST THE CITY
(Negligent Hiring, Training and Retention)

38. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

49. That the aforesaid incidents and resulting damage to plaintiff were due to the negligence of the City, its agents, servants and/or employees, in the hiring, training, and retention of the involved NYPD officers, including Ortega, Chambers, Sgt. John Doe #1, John Doe #2, and John Doe #3.

SEVENTH CAUSE OF ACTION AGAINST THE CITY
("Monell" Claims)

40. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

41. That prior to the events alleged herein, Ortega, Chambers, Sgt. John Doe #1, John Doe #2, and John Doe #3 had engaged in similar conduct and had knowingly perpetrated violations of constitutional rights of other individuals.

42. That the City, including those in supervisory capacities, knew about the prior constitutional violations committed by these police officers.

43. That the aforesaid actions by Ortega, Chambers, Sgt. John Doe #1, John Doe #2, and John Doe #3 were consistent with and in compliance with an authorized pattern and practice of the NYPD whereby persons would be stopped, questioned, frisked, detained, arrested, and prosecuted by NYPD officers without probable cause, without reasonable suspicion, and without justification.

44. That the aforesaid pattern and practice has been thoroughly documented in Floyd v. City of New York, 2013 U.S. Dist. LEXIS 113271 (S.D.N.Y. 2013), wherein the Court heard testimony from expert witnesses, considered the results of extensive studies on the matter, and concluded that The City of New York in fact has a custom and practice of stopping and frisking individuals without probable cause or reasonable suspicion that these individuals committed or were about to commit any crime or criminal violation.

45. That the aforesaid incidents and resulting damage to plaintiff were due to the aforementioned pattern and practice and also a result of a deliberate indifference by the City to a pattern of unconstitutional conduct by Ortega, Chambers, Sgt. John Doe #1, John Doe #2, and John Doe #3.

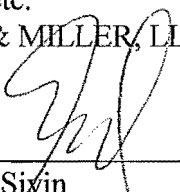
46. That all of the foregoing causes of action fall within one or more of the exceptions set forth in CPLR § 1602 with respect to joint and several liability.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against defendants Ortega, Chambers, Sgt. John Doe #1, John Doe #2,

and John Doe #3, and attorney's fees against all defendants pursuant to 42 USC § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
March 4, 2014

Yours, etc.
SIVIN & MILLER, LLP

By 
Edward Sixin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

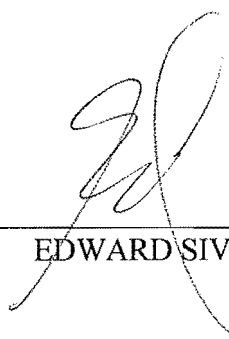
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
March 4, 2014



EDWARD SIVIN

Index No.

Year 2014

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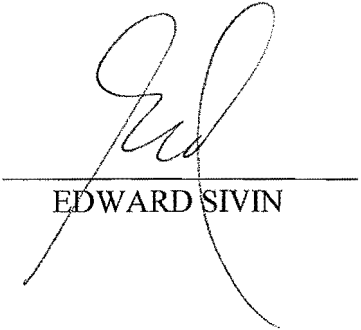
VERIFIED COMPLAINT

SIVIN & MILLER, LLP

Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300
FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
March 4, 2014